

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

GISCARD JOSEPH,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER WILLIAM PUGLIESE and
NYPD OFFICER JOSEPH CALABRESE,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 1, 2018

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: 100 Church Street, New York, NY 10007

NYPD Officer William Pugliese: c/o NYPD 67th Pct., 2820 Snyder Ave, Brooklyn, NY 11226

NYPD Officer Joseph Calabrese: c/o NYPD 67th Pct., 2820 Snyder Ave, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
GISCARD JOSEPH,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER WILLIAM PUGLIESE and
NYPD OFFICER JOSEPH CALABRESE,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.
4. That at all times herein mentioned, the City operated, controlled, managed, and

maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant NYPD Officer William Pugliese (hereinafter “Pugliese”) was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Pugliese was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Pugliese was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Officer Joseph Calabrese (hereinafter “Calabrese”) was and is an officer employed by the NYPD.

9. That at all times herein mentioned, Calabrese was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Calabrese was acting under color of state law.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about June 13, 2017, at or around the intersection of East 40th Street and Foster Avenue, in the County of Kings, City and State of New York, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including but not limited to Pugliese and Calabrese (hereinafter referred to collectively as “the officers”), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit a crime, criminal offense or violation, and without otherwise being justified, forcibly stopped plaintiff’s vehicle, drew a firearm and pointed it at plaintiff, forcibly removed plaintiff from his vehicle by, among other things, grabbing him around his neck

and by his arm, and then slammed plaintiff against a vehicle, searched plaintiff and plaintiff's vehicle without his consent and without justification, and then forcibly handcuffed plaintiff.

13. That the officers then continued to detain and imprison plaintiff against his will at the scene of the stop and inside a police vehicle.

14. That the officers' actions were undertaken with the intention of causing plaintiff to be in imminent fear for his safety and for his life, or in reckless disregard of causing such fear in plaintiff.

15. That each of the officers observed the illegal conduct or his or her fellow officers, had a reasonable opportunity to intervene to prevent or stop that conduct, but deliberately failed and refused to do so.

16. That as a result of the foregoing, plaintiff was placed in imminent fear for his safety and life, suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault)

17. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

18. That the aforementioned actions of the officers constituted an assault upon plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Battery)

19. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

20. That the aforementioned actions of the officers constituted a battery upon plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

21. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

22. That the aforementioned actions of the officers constituted a false arrest and a false imprisonment of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising From Fourth Amendment Violation)

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforementioned actions of the officers constituted illegal searches and seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising From Failure to Intervene)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of the officers in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to

plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, and Retention)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforesaid incident and resulting damage to plaintiff was due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the officers.

29. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
May 1, 2018

Yours, etc.
SIVIN & MILLER, LLP

By _____

Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

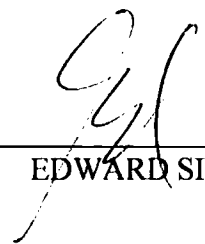
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
May 1, 2018



EDWARD SIVIN

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COUNTY OF KINGS

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Plaintiff,

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THE CITY OF NEW YORK, et. al.,

Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

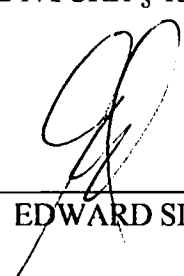
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
May 1, 2018